

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Philip A. Brimmer

Civil Action No. 21-cv-02522-PAB

DANIEL HOLLINGSWORTH,

Plaintiff,

v.

IQ DATA INTERNATIONAL, INC., a Washington corporation,

Defendant.

ORDER ACCEPTING MAGISTRATE JUDGE'S RECOMMENDATION

This matter is before the Court on the Recommendation of United States Magistrate Judge Michael E. Hegarty filed on December 1, 2021 [Docket No. 18]. The Recommendation states that objections to the Recommendation must be filed within fourteen days after its service on the parties. Docket No. 18 at 4-5; *see also* 28 U.S.C. § 636(b)(1)(C). The Recommendation was served on December 1 and December 2, 2021.¹ No party has objected to the Recommendation.

In the absence of an objection, the district court may review a magistrate judge's recommendation under any standard it deems appropriate. *See Summers v. Utah*, 927 F.2d 1165, 1167 (10th Cir. 1991); *see also Thomas v. Arn*, 474 U.S. 140, 150 (1985) ("It

¹ The Recommendation was issued on December 1, 2021. Docket No. 18. However, because plaintiff did not provide the Clerk of Court with his address, the magistrate judge ordered defendant to forward a copy of the Recommendation to plaintiff at all "mailing, residential, and email addresses" that defendant has for plaintiff. *Id.* at 5. Defendant filed a Notice of Compliance on December 3, 2021, stating that it emailed and mailed a copy of the Recommendation to plaintiff on December 2, 2021. Docket No. 20 at 2.

does not appear that Congress intended to require district court review of a magistrate's factual or legal conclusions, under a *de novo* or any other standard, when neither party objects to those findings."). In this matter, the Court has reviewed the Recommendation to satisfy itself that there is "no clear error on the face of the record."² Fed. R. Civ. P. 72(b), advisory committee notes. Based on this review, the Court has concluded that the Recommendation is a correct application of the facts and the law. Accordingly, it is

ORDERED as follows:

1. The Recommendation of United States Magistrate Judge Michael E. Hegarty [Docket No. 18] is **ACCEPTED**;
2. This case is **DISMISSED WITHOUT PREJUDICE**, pursuant to Fed. R. Civ. P. 41(b), for failure to prosecute; and
3. This case is closed.

DATED December 27, 2021.

BY THE COURT:



PHILIP A. BRIMMER
Chief United States District Judge

² This standard of review is something less than a "clearly erroneous or contrary to law" standard of review, Fed. R. Civ. P. 72(a), which in turn is less than a *de novo* review. Fed. R. Civ. P. 72(b).